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# Media Trials and Courtroom Tribulations

## A Battle of Images, Words and Shadows

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Shuddhabrata Sengupta

‘The acquittal of an innocent man is not an occasion for celebration, but a cause for reflection.’

—Syed Abdul Rehman Geelani, on his being acquitted by the Supreme Court on charges of conspiracy in the Parliament attack case

On 4 August 2005 the Supreme Court of India gave its verdict on the 13 December 2001 ‘Attack on Parliament’ case, acquitting two of the original accused, S.A.R. Geelani, lecturer in Arabic at Zakir Husain College, Delhi and Afsan Guru (aka Navjot Sidhu), wife of one of the accused Shaukat Husain Guru, and upholding the death sentence pronounced by the Delhi High Court and the Special POTA court on Mohammad Afzal. The high court’s pronouncement of a death sentence on Shaukat Husain Guru was commuted to ten years imprisonment. In announcing this verdict, the Supreme Court of India upheld the Delhi High Court’s acquittal of S.A.R. Geelani and Afsan Guru. Geelani had been sentenced to death, and Afsan Guru awarded five years of rigorous imprisonment by the judge of the special POTA court, S.N. Dhingra, on 18 December 2002.

The justices P.V. Reddy and P.P. Naolekar, while acquitting S.A.R. Geelani on the grounds that the prosecution was not able to present adequate evidence against the accused, maintained that there was still a ‘needle of suspicion’ against S.A.R. Geelani, but that suspicion alone could not form the basis of a sentence in the absence of robust evidence.

With the pronouncement of this verdict by the highest judicial authority of the Republic of India, a sordid chapter in the history of this republic came to a provisional and uncertain conclusion. One hesitates to use the term ‘end’